



CHAPTER xliv.

An Act to make further provision with respect to the granting of superannuation allowances to the officers and servants of the council of the metropolitan borough of Wandsworth to amend the Wandsworth Borough Council (Superannuation) Act 1909 and for other purposes.

A.D. 1924.

[14th July 1924.]

WHEREAS in pursuance of the Wandsworth Borough Council (Superannuation) Act 1909 (in this Act called "the principal Act") a superannuation fund has been established into which contributions are paid by the mayor aldermen and councillors of the metropolitan borough of Wandsworth (in this Act called "the Council") and by their officers and servants for the payment of superannuation allowances to such officers and servants on their retirement:

And whereas it is expedient to make further provision in regard to the said fund and the allowances to be paid to the said officers and servants and to amend the principal Act:

And whereas in pursuance of section 13 of the principal Act the condition of the superannuation fund was in the year nineteen hundred and twenty considered by an actuary who certified that in his opinion the amount of the primary annual contribution necessary so that the fund should be solvent as constituted under paragraphs (a) (b) and (c) of subsection (1) of section 12

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A.D. 1924. of the principal Act was sixteen thousand three hundred and twenty-two pounds :

And whereas owing to changes of circumstances that have taken place since the date of the actuary's certificate and particularly to the reductions that have taken place in the salaries and wages paid by the Council to their officers and servants the increases that have taken place in the value of the investments of the superannuation fund and the relief from income tax afforded by the Finance Act 1921 the primary annual contribution can be reduced to the amount stated in this Act without affecting the solvency of the superannuation fund and it is expedient that the provisions of this Act in relation to such contribution be enacted :

And whereas it is expedient that the other provisions of this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

May it therefore please your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title
commence-
ment and
interpre-
tation.

1.—(1) This Act may be cited as the Wandsworth Borough Council (Superannuation) Act 1924 and the principal Act and this Act may be cited as the Wandsworth Borough Council (Superannuation) Acts 1909 and 1924.

(2) This Act except where otherwise provided shall come into operation on the first day of September nineteen hundred and twenty-four.

(3) In this Act the words and expressions to which meanings are assigned by section 2 of the principal Act shall have the same respective meanings.

Definition
of emolu-
ments.

2. For the removal of doubt be it enacted that the expression " emoluments " in the principal Act and in this Act includes the remuneration of the town clerk of the borough acting as registration officer (excluding any

sums so received and applied by him in the remuneration of other persons) in the performance of his duties in relation to registration under the Representation of the People Act 1918 and the Acts amending the same. A.D. 1924.
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3. The following shall be substituted for the proviso to subsection (3) of section 3 of the principal Act namely :—

Amendment
of provision
as to
extension of
service.

“ Provided that the Council may with the consent of the officer or servant by resolution extend the period of service of any such officer or servant for one year or any less period and so from time to time as they may deem expedient.”

4.—(1) The Council may in any case in which an officer or servant is permanently incapacitated by an injury sustained by him in the actual discharge of his duty and without his own default and specifically attributable to the nature of his duty grant to such officer or servant subject to such conditions as they may think fit such gratuity either by way of a lump sum or periodical payments as they may consider reasonable having regard to all the circumstances of the case including any statutory right to compensation or any allowance or gratuity under the principal Act as amended by this Act so however that the sums received by him shall not exceed in the aggregate the amount of any allowance to which he would have been entitled if he had already attained the age of sixty-five at the date when he became incapacitated. Gratuities.

(2) Any gratuity granted under this section shall not be paid out of the superannuation fund but shall be chargeable upon the same funds rates and revenues as those upon which the salary or wages of the officer or servant to whom the gratuity is granted are charged.

5. Subject to the provisions of this Act with respect to officers and servants in the service of the Council at the commencement thereof section 6 of the principal Act shall have effect as if the following provisions were substituted for subsection (1) of that section :—

Return of
contribu-
tions in
certain
cases.

“ **6.**—(1) An officer or servant who has not become entitled to a superannuation allowance and who—

“ (a) voluntarily resigns his office or employment or is dismissed by the Council for

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“ incapacity (fraud or misconduct nor being
“ alleged); or

“ (b) loses his office or employment by reason
“ of the termination of a joint appointment a
“ reduction of staff the abolition of his office
“ or employment or any alteration of areas or
“ boundaries; or

“ (c) ceases to hold his office or employment
“ by reason of ill-health mental infirmity or
“ bodily injury not occasioned by his own
“ default or of any cause whatever other than
“ his own misconduct;

“ shall be entitled to receive a sum equal to the
“ amount of all his contributions to the super-
“ annuation fund with compound interest there-
“ on calculated to the date of his ceasing to
“ hold office at the rate of three per centum per
“ annum by half-yearly rests.”

“ This subsection shall not apply to an officer or
“ servant to whom section 5 of this Act applies.”

Payments
in case of
death.

6.—(1) Subject to the provisions of this Act with respect to officers and servants in the service of the Council at the commencement thereof section 7 of the principal Act is hereby repealed.

(2) In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance under the principal Act as amended by this Act the Council shall pay to his legal personal representative out of the superannuation fund a sum equal to the amount of all the contributions made by such officer or servant to the superannuation fund together with compound interest thereon calculated to the date of his death at the rate of three per centum per annum by half-yearly rests.

(3) In the event of an officer or servant dying after he has become entitled to a superannuation allowance under the principal Act as amended by this Act and before he shall have received by way of superannuation allowance an amount equal in the aggregate to the amount of his contributions to the superannuation fund together with compound interest thereon calculated to the date of his retirement at the rate of three per centum per annum by half-yearly rests the Council shall pay to his legal personal representative out of the superannuation fund the differ-

ence between the total amount which such officer or servant has received by way of superannuation allowance and the aggregate amount of his contributions to the superannuation fund together with compound interest thereon at the rate and calculated as aforesaid up to the date of his retirement. A.D. 1924.

7.—(1) Subject to the provisions of this section all periods of service by an officer or servant rendered before his appointment by the Council or their predecessors under and as an officer or servant of any other local authority as defined in section 34 of the Local Loans Act 1875 in a whole-time capacity shall be aggregated and reckoned as part of his service for the purpose of determining the amount of his superannuation allowance under the principal Act as amended by this Act but not for the purpose of determining his right to a superannuation allowance thereunder. Service under other authorities.

(2) In addition to the contribution to be made under section 11 of the principal Act as amended by section 9 of this Act any officer or servant who may be appointed by the Council after the commencement of this Act and to whom this section applies shall pay into the superannuation fund a sum equal to the aggregate amount which he would have contributed to that fund—

(a) if he had been an officer or servant in the service of the Council during the period of his service with such other local authority or local authorities; and

(b) if the principal Act and this Act had been in operation during that period.

(3) The sum payable under subsection (2) of this section shall be paid in such instalments and at such times as may be determined by the Council.

(4) Provided that—

(a) This section shall not apply to any officer or servant in the service of the Council at the commencement of this Act who fails within six months after the passing of this Act to prove to the reasonable satisfaction of the Council that he has been in the service of any such local authority as aforesaid;

(b) In case of an officer or servant appointed subsequently to the commencement of this

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Act no such period of service shall be so aggregated and reckoned unless the officer or servant if required declares the length thereof prior to his appointment and proves to the satisfaction of the Council within a period of three months from the date of such appointment that he has been in the service or employment of any such authority or authorities for such period;

- (c) No such period of service shall be so aggregated and reckoned which has been or may be reckoned for the purpose of compensation or superannuation allowances or gratuities under any other Act.

Medical
examina-
tion.

8. No person who is not an officer or servant at the commencement of this Act shall be placed on the permanent establishment as a contributor to the superannuation fund unless he has been examined by a registered medical practitioner appointed by the Council for the purpose and certified by him to be fit for service.

Increase of
rate of con-
tributions
by officers.

9. Subject to the provisions of this Act with respect to officers and servants in the service of the Council at the commencement of this Act the following provision shall as from the commencement of this Act be substituted for subsection (1) of section 11 of the principal Act namely :—

- “ (1) The percentage amounts to be deducted for the purposes of this Act shall be five per centum of the annual salary or wages and emoluments.”

Existing
officers and
servants.

10.—(1) Immediately after the passing of this Act the Council shall take such steps as they may deem necessary for the purpose of bringing the provisions of this Act to the notice of the officers and servants then in the service of the Council.

(2) The foregoing provisions of this Act shall apply to any officer or servant in the service of the Council at the date of the commencement of this Act who before the first day of November nineteen hundred and twenty-four or within such further time as the Council may allow gives notice to the Council of his desire that those provisions shall apply to him but as regards every such officer or servant who does not give such notice the

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principal Act shall continue to apply as if the foregoing provisions of this Act had not been enacted. A.D. 1924.

11.—(1) Notwithstanding anything contained in section 13 of the principal Act the primary annual contribution to the superannuation fund under that Act for the period of five years ending on the thirty-first day of March nineteen hundred and twenty-eight shall be and shall be deemed to have been twelve thousand five hundred and thirteen pounds. Primary annual contribution.

(2) The periods of five years at the expiration of which the superannuation fund shall be considered and the amount of the primary annual contribution shall be certified under section 13 of the principal Act shall be reckoned from the thirty-first day of March nineteen hundred and twenty-three.

12.—(1) The Council shall supply any officer or servant desirous of giving notice under section 10 of this Act with the form of notice to be given under such section. Form and service of notices.

(2) Any notice required to be given to the Council by an officer or servant under this Act shall be deemed to be sufficiently served if delivered to the town clerk of the said borough or left at his office with some person employed there or sent by post to the said town clerk in a registered letter.

13. All the costs charges and expenses preliminary and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate. Costs of Act.

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